

		no longer be any liabilities in this matter. (Civ. Proc. Code § 567(b); Cal. Rules Ct., rule 3.1184(a)(3); <i>Hanno v. Superior Ct. of Santa Barbara Cnty.</i> (1939) 30 Cal.App.2d 639, 641; <i>City of Chula Vista v. Gutierrez</i> (2012) 207 Cal.App.4th 681, 685–86.) Receiver is ordered to submit a proposed order consistent with this ruling and to give notice to all parties entitled to notice.
4.	<i>Cho vs. Twiso Bakery Inc.</i> 2020-01169632	Before the court is the motion to enforce settlement agreement and enter judgment, etc., filed on July 16, 2026, by plaintiff Euna Cho (Plaintiff), seeking entry of judgment in the amount of \$24,500 against defendants Bottega Trading, Inc. and Hyo Sang Lee (collectively, Bottega Defendants). As more fully set forth below, the motion is GRANTED IN PART and DENIED IN PART. The motion seeks to enforce a settlement agreement between Plaintiff and the Bottega Defendants pursuant to Code of Civil Procedure section 664.6 based on their Settlement Agreement (Agreement) as reflected in the Park Declaration at Exhibit A. The evidence presented demonstrates notice of the default on the promised settlement payments was given, but the Bottega Defendants failed to timely cure, leaving a balance due in the sum of \$24,500. (Park Decl., ¶¶ 2-27.) Judgment shall thus now be entered pursuant to Code of Civil Procedure section 664.6, subdivision (a), against the Bottega Defendants, jointly and severally, for the remaining sum owed under the terms of that Agreement in the amount of \$24,500. The request for attorney fees and costs, however, is DENIED. Plaintiff has not shown that the Agreement provided for recovery of fees or costs incurred in the action or in efforts to enforce the Agreement. To the contrary, the Agreement states in section 7 that the parties were to bear their own fees as incurred in the action, and in sections 5 and 8, Plaintiff released any and all other claims. Plaintiff is to submit a proposed Judgment which comports with the foregoing, and is to give notice of this ruling.
5.	<i>Buena Noche, LLC vs. One Health Services, LLC</i> 2026-01566837	Before the court is the motion of defendant and judgment debtor Ryan Quimby-Johnson, aka Ryan Quimby (Debtor) to vacate entry of sister-state judgment, or in the alternative, to stay enforcement of judgment pending resolution of Texas bill of review proceeding. As more fully set forth below, the court GRANTS the request for a stay

	and CONTINUES the request to vacate pending the outcome of the bill of review in Texas. By this motion, Debtor challenges the default judgment plaintiffs and judgment creditors Buena Noche, LLC and Morgan Park, Ltd. (collectively, Creditors) obtained against Debtor in Texas state court and have now entered as a sister-state judgment here in California. Debtor contends he was never validly served in the Texas case, and he has filed a bill of review to challenge the default judgment in the Texas state courts. Creditors object they were never served with the motion and therefore the motion should be denied outright. Debtor has not filed any proof of service showing he properly served the motion on Creditors and has not timely filed any reply to show service of the motion was properly made. As Creditors point out, although Code of Civil Procedure section 1710.40 authorizes a judgment debtor to bring a motion to vacate a sister-state judgment, section 1710.040, subdivision (b), requires such motion to be made within 30 days of service of notice of entry of the sister-state judgment, including written notice to the judgment creditor. As noted, although Debtor timely filed this motion, he did not provide any evidence he timely served it, or served it at all for that matter. The section 1710.40, subdivision (b), 30-day limitations period, however, does not apply when the motion to vacate the judgment is based on defective subject matter or personal jurisdiction in the underlying action. "Judgments or orders by a court that lacks jurisdiction in this fundamental sense are void. Objection bases thereon may be raised at any time." (<i>Airlines Reporting Corp. v. Renda</i> (2009) 177 Cal.App.4th 14, 19-20; <i>Conseco Marketing, LLC v. IFA & Ins. Services, Inc.</i> (2013) 221 Cal.App.4th 831, 843.) As noted above, Debtor's challenge is based on the claim he was never served and therefore the Texas state court never has personal jurisdiction over him, and therefore the service defect on this motion is not necessarily fatal to the motion. The court also notes, despite the lack of any service of the motion, Creditors have responded on the merits of the motion and have not shown any prejudice. It also is important to note Debtor's alternative request for a stay under Code of Civil Procedure section 1710.50 is not subject to the same 30-day time limit, or any statutory time limit at all. Section 1710.50, subdivision (a) states
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		the court “shall” grant a stay of enforcement when, among other things, an appeal is pending in the state court that entered the judgment or any other circumstances exist where the interests of justice require a stay of enforcement. Here, Debtor states he has filed a bill of review in Texas state court to challenge the default judgment on which the sister-state judgment is based. As more fully stated below, Creditors have objected to the copies of the bill of review Debtor provides, but Creditors have not disputed the existence of Debtor’s challenge in Texas state court. Based on the foregoing, the court GRANTS the request to stay enforcement of the sister-state judgment in this court pending resolution of the challenge to the underlying judgment in the Texas state courts. Creditors request the court condition the stay on requiring Debtor to post an undertaking. Code of Civil Procedure section 1710.50, subdivision (c), grants the court the discretion to place conditions on the imposition of a stay, including requiring an undertaking. Creditors, however, have not explained or made any showing as to why an undertaking is necessary or appropriate. Accordingly, the court declines to require an undertaking at this time. Based on the foregoing, the court also CONTINUES the request to vacate the sister state judgment and SETS A STATUS CONFERENCE regarding the proceedings in the Texas state courts for <u>Monday, December 14, 2026, at 9:30 a.m.</u> The request to vacate also will be on calendar on December 14, but only for scheduling purposes. Once the Texas proceedings are resolved, the court will determine how to proceed with the request to vacate—e.g., whether to set it for a hearing on the merits or order it off calendar. <u>Creditors’ Objections:</u> As noted, Creditors filed objections to certain evidence Debtor submitted. Those objections are OVERRULED as to object nos. 1-3, 6, and 9, and SUSTAINED as to objection nos. 4, 5, 7, and 8. Debtor is ordered to give notice of this ruling.
6.	<i>Genesis Capital, LLC v. Scottsdale Lei, LLC</i> 2025-01473320	CONTINUED to October 15, 2026, as stated in the September 17, 2026 Minute Order.
7.	<i>Santos vs. Crenshaw</i>	Before the court is the renewed motion to amend judgment pursuant to Code of Civil Procedure section 187 to add